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Compliance Framework & IT Controls

AMPAC BUSINESS CAPITAL

SBA 504 Lender | CDFI

California · Arizona · Nevada

ASSESSMENT SUMMARY

8 Regulatory Frameworks

52 IT Controls Identified

PREPARED BY

Technijian

Technology as a Solution

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REGULATORY LANDSCAPE

As an SBA 504 lender and CDFI, AMPAC Business Capital operates under eight intersecting regulatory frameworks. Each framework mandates specific IT controls that Technijian will implement, monitor, and maintain. The map below identifies each framework, its governing authority, and the number of IT controls required.

01 SBA LOAN PROGRAMS
SOP 50 10 / 13 CFR 120
Authority: SBA
8 Controls

02 CDFI COMPLIANCE
12 CFR 1805 / Treasury
Authority: Treasury CDFI Fund
6 Controls

03 FAIR LENDING / ECOA
Regulation B / FHA
Authority: CFPB / DOJ
7 Controls

04 AML / BSA / KYC
31 USC 5301 / FinCEN
Authority: FinCEN / OCC
9 Controls

05 INFORMATION SECURITY
GLBA Safeguards Rule
Authority: FTC / CFPB
8 Controls

06 FCRA
15 USC 1681
Authority: CFPB / FTC
5 Controls

07 DATA PRIVACY
CCPA / CPRA / CalOPPA
Authority: CA Privacy Agency
5 Controls

08 CONSUMER PROTECTION
TILA / UDAAP / Dodd-Frank
Authority: CFPB
4 Controls

TOTAL FRAMEWORKS	TOTAL IT CONTROLS	GOVERNING AUTHORITIES	CRITICALITY
8	52	12+	HIGH

01 SBA LOAN PROGRAMS

SOP 50 10 | 13 CFR Part 120 | SBA Form 1919

The Small Business Administration governs all SBA 504 and 7(a) loan programs through Standard Operating Procedure 50 10. Lenders must verify 100% U.S. citizen ownership, perform credit analysis, and maintain minimum activity levels.

IT CONTROL	IMPLEMENTATION REQUIREMENT
Identity & Ownership Verification System	Automated borrower identity verification with multi-layer ownership tracing through entity structures. Integration with government databases for citizenship confirmation.
Loan Origination System (LOS) Compliance Module	Configurable underwriting rules engine enforcing SBA eligibility criteria, loan limits ($350K for 7(a) small loans), and credit analysis documentation requirements.
Document Management & Retention	Encrypted digital vault for Form 1919, ownership documentation, credit memoranda, and SBA correspondence with 7-year retention and audit trail.
SBA Reporting Automation	Automated generation of SBA-required reports including loan activity, portfolio performance, and compliance certifications.
Credit Scoring & Decision Engine	Alternative credit scoring models replacing FICO SBSS (sunset March 2026) with documented decision rationale and audit capabilities.
Segregation of Duties Controls	Role-based access ensuring loan origination, underwriting, approval, and servicing are performed by separate authorized personnel.
Change Management for Regulatory Updates	Tracked process for implementing SBA policy changes with testing, approval workflows, and rollback capabilities.
Audit Trail & Compliance Logging	Immutable logging of all loan decisions, document access, system changes, and regulatory submissions.

02 CDFI COMPLIANCE

12 CFR Part 1805 | U.S. Treasury CDFI Fund

As a certified CDFI, AMPAC must demonstrate service to target markets, maintain development services alongside lending, comply with anti-discrimination requirements, and provide full transparency to Treasury oversight.

IT CONTROL	IMPLEMENTATION REQUIREMENT
Target Market Analytics Platform	GIS-enabled system tracking lending activity by Investment Area and Targeted Population demographics with real-time compliance dashboards.
Community Impact Reporting System	Automated data collection and reporting for CDFI Fund annual submissions including financial products, development services, and impact metrics.
Anti-Discrimination Policy Management	Digital policy repository with annual certification workflows, employee acknowledgment tracking, and CDFI Fund audit-ready documentation.
Treasury Audit Access Controls	Secure, role-based access provisioning for CDFI Fund examiners with granular permissions to books, records, and financial statements.
Development Services Tracking	CRM module tracking technical assistance, financial literacy programs, and business development services provided alongside lending products.
CDFI Certification Compliance Dashboard	Continuous monitoring of all CDFI certification requirements with alerting for approaching thresholds or material changes.

03 FAIR LENDING / ECOA

Regulation B (12 CFR 202) | Fair Housing Act

ECOA and the Fair Housing Act prohibit discrimination in all credit transactions. AMPAC must monitor lending decisions for disparate treatment and disparate impact across all protected classes.

IT CONTROL	IMPLEMENTATION REQUIREMENT
Fair Lending Monitoring & Analytics	Statistical analysis engine testing underwriting decisions, pricing, and marketing for disparate impact across race, sex, age, national origin, and other protected classes.
Adverse Action Notice System	Automated generation of compliant adverse action notices with specific denial reasons, credit reporting agency information, and consumer rights disclosures.
Loan Pricing Compliance Engine	Rate and fee validation ensuring consistent pricing across borrower demographics with exception reporting and management override documentation.
Application Data Integrity Controls	Input validation preventing collection of prohibited information on applications while enabling HMDA-required demographic monitoring fields.
Decision Documentation System	Structured underwriting decision capture requiring documented rationale, supporting data, and supervisor review for all credit decisions.
Marketing & Outreach Compliance Review	Workflow for legal/compliance review of all marketing materials, advertising, and outreach programs before distribution.
Fair Lending Training & Certification Tracker	LMS integration tracking mandatory fair lending training completion, testing scores, and annual recertification for all lending staff.

04 AML / BSA / KYC

Bank Secrecy Act | 31 USC 5301 | FinCEN | OFAC

Financial crime prevention requires comprehensive customer due diligence, transaction monitoring, suspicious activity reporting, and sanctions screening across all borrower relationships.

IT CONTROL	IMPLEMENTATION REQUIREMENT
Customer Identification Program (CIP)	Automated identity verification integrating government ID validation, address verification, and tax ID confirmation against authoritative databases.
Beneficial Ownership Registry	Entity resolution system identifying and documenting all beneficial owners (25%+ threshold) with ongoing monitoring for ownership changes.
OFAC / Sanctions Screening Engine	Real-time screening of all borrowers, guarantors, and beneficial owners against SDN, Sectoral Sanctions, and consolidated screening lists with automated alerting.
Transaction Monitoring System	Rule-based and behavioral analytics monitoring loan disbursements, payments, and related transactions for structuring, layering, and anomalous patterns.
SAR Filing & Case Management	Secure workflow for suspicious activity investigation, SAR preparation, FinCEN e-filing, and 5-year record retention with strict access controls.
Enhanced Due Diligence (EDD) Module	Risk-tiered CDD framework with automated triggers for EDD based on geography, entity complexity, PEP status, and negative media screening.
BSA/AML Risk Assessment	Enterprise-wide annual risk assessment tool evaluating products, services, customers, and geographies with documented risk ratings and mitigation strategies.

05 INFORMATION SECURITY

GLBA Safeguards Rule | 16 CFR 314

The Safeguards Rule requires a comprehensive information security program with a designated CISO, annual risk assessments, encryption, access controls, and continuous monitoring.

IT CONTROL	IMPLEMENTATION REQUIREMENT
Information Security Program & Governance	Written infosec program with CISO designation, board reporting, policy library, and annual program assessment aligned to NIST CSF.
Risk Assessment & Management	Annual risk assessment of all systems processing customer information with threat modeling, vulnerability identification, and risk treatment plans.
Data Encryption (Transit & Rest)	TLS 1.3 for data in transit, AES-256 for data at rest across all systems storing customer financial information, PII, and credentials.
Identity & Access Management (IAM)	Centralized IAM with MFA enforcement, least-privilege access, quarterly access reviews, and automated deprovisioning for terminated employees.
Endpoint Detection & Response (EDR)	Enterprise EDR deployment across all endpoints with 24/7 SOC monitoring, automated threat containment, and incident response integration.
Vulnerability Management & Patching	Continuous vulnerability scanning with risk-based prioritization, 30/60/90-day SLA patching cycles, and compensating control documentation.
Incident Response & Breach Notification	Documented IR plan with defined roles, communication templates, forensic procedures, and regulatory notification workflows (state AG, consumers).
Vendor Risk Management	Third-party security assessment program with SOC 2 / penetration test requirements, contractual security obligations, and ongoing monitoring.

06 FCRA

Fair Credit Reporting Act | 15 USC 1681

FCRA governs the use of consumer credit information in lending decisions, requiring proper disclosures, consent, adverse action notices, and dispute resolution procedures.

IT CONTROL	IMPLEMENTATION REQUIREMENT
Credit Report Consent & Disclosure System	Digital consent capture with timestamp, IP logging, and secure storage prior to any credit bureau inquiry. Clear disclosure of intended use.
Adverse Action Integration	Automated adverse action notices triggered by credit-based decisions including specific factors, CRA contact information, and free report rights.
Dispute Resolution Workflow	Consumer dispute intake, investigation tracking, 30-day response SLA monitoring, and correction propagation to credit bureaus.
Credit Bureau Access Controls	Restricted access to credit pull capabilities with role-based permissions, permissible purpose documentation, and usage audit logging.
Pre-Screen Opt-Out Compliance	Firm offer of credit procedures with opt-out list maintenance, IRS pre-screen certification, and marketing compliance documentation.

07 DATA PRIVACY

CCPA / CPRA | CalOPPA | GLBA Privacy Rule

California privacy laws and the GLBA Privacy Rule require transparent data practices, consumer rights fulfillment, opt-out mechanisms, and privacy-by-design across all systems processing personal information.

IT CONTROL	IMPLEMENTATION REQUIREMENT
Privacy Notice & Policy Management	Centralized privacy notice generation covering GLBA annual notice, CCPA/CPRA disclosures, and CalOPPA online privacy policy with version control.
Consumer Rights Request Portal	Self-service portal and workflow for CCPA rights: access, deletion, correction, portability, and opt-out of sale/sharing with 45-day SLA tracking.
Data Inventory & Classification	Automated data discovery and classification across all systems identifying PII, financial data, and sensitive categories with data flow mapping.
Opt-Out & Consent Management	Granular consent management for GLBA non-affiliated sharing, CCPA Do Not Sell, and marketing preferences with centralized preference store.
Data Retention & Disposal	Automated retention schedule enforcement with secure disposal procedures (NIST 800-88) and certificate-of-destruction documentation.

08 CONSUMER PROTECTION

TILA / Regulation Z | UDAAP | Dodd-Frank

Truth in Lending and UDAAP protections require transparent loan disclosures, fair lending terms, accurate APR calculations, and prohibition of unfair, deceptive, or abusive practices.

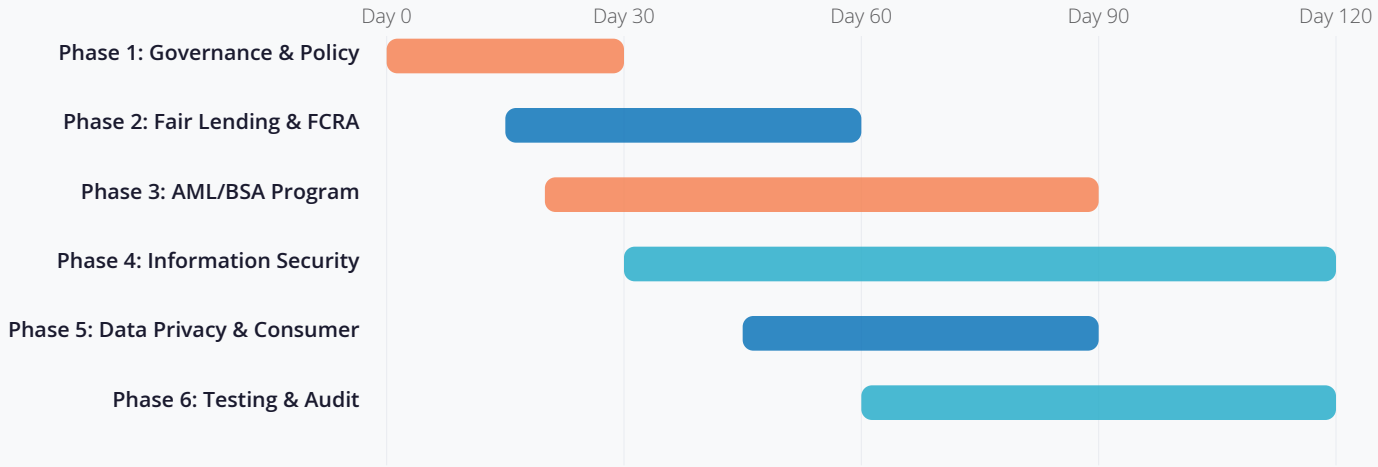
IT CONTROL	IMPLEMENTATION REQUIREMENT
Loan Disclosure Engine	Automated Loan Estimate and Closing Disclosure generation with APR calculation, fee itemization, and 3-day delivery tracking for TILA compliance.
UDAAP Monitoring Framework	Complaint analytics, marketing review workflows, and fee structure analysis identifying potential unfair, deceptive, or abusive practices.
APR Calculation & Validation	Independent APR calculation engine with tolerance testing, finance charge verification, and exception reporting for regulatory accuracy.
Complaint Management System	Centralized intake, categorization, investigation, and resolution tracking for consumer complaints with CFPB reporting integration.

IMPLEMENTATION PRIORITY & TIMELINE

The matrix below prioritizes framework implementation based on regulatory criticality, enforcement risk, and implementation complexity. All CRITICAL frameworks must be addressed within 90 days.

FRAMEWORK	CRITICALITY	EFFORT	TIMELINE	OWNER
SBA Loan Programs (SOP 50 10)	CRITICAL	High	90 days	Compliance
CDFI Compliance (Treasury)	CRITICAL	High	90 days	Operations
Fair Lending / ECOA	CRITICAL	High	60 days	Legal
AML / BSA / KYC	CRITICAL	High	90 days	BSA Officer
Information Security (GLBA)	HIGH	High	120 days	IT / CISO
FCRA Compliance	HIGH	Medium	45 days	Underwriting
Data Privacy (CCPA/CPRA)	HIGH	Medium	90 days	Legal
Consumer Protection (TILA)	MODERATE	Medium	60 days	Compliance

IMPLEMENTATION TIMELINE



RECOMMENDED NEXT STEPS

01 COMPLIANCE GAP ASSESSMENT

5-10 Business Days

Technijian conducts a comprehensive gap analysis comparing AMPAC's current IT infrastructure, policies, and procedures against all 52 identified IT controls.

02 GOVERNANCE & POLICY DEVELOPMENT

30 Days

Establish compliance governance structure including CCO designation, BSA/AML Officer appointment, and board-level oversight. Develop all required policies and documentation.

03 TECHNOLOGY IMPLEMENTATION

60-90 Days

Deploy and configure all IT control systems including identity verification, OFAC screening, transaction monitoring, encryption, IAM, EDR, and compliance platforms.

04 STAFF TRAINING & CERTIFICATION

Ongoing

Deliver role-based compliance training covering fair lending, AML/KYC, data security, privacy requirements, and SBA regulatory updates. Establish ongoing training calendar and certification tracking.

05 INDEPENDENT TESTING & AUDIT

Annual

Conduct independent testing of all compliance programs including AML/BSA audit, fair lending review, information security risk assessment, and CDFI certification compliance verification.

CONTACT

TECHNIJIAN technology as a solution

Technijian

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18 Technology Dr, Ste 141, Irvine, CA 92618

949.379.8500 | technijian.com | RJain@technijian.com